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SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF SUFFOLK

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DIANE C. DESOUSA AND THOMAS E.

DESOUSA,

Plaintiffs,

- against -

RICHARD A. CALVAGNO II AND PATRICK

J. KARCHER,

Defendants.

Index No.: 600371/2021
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1225 Franklin Avenue
Garden City, New York

May 3, 2023
12:56 p.m.

Examination Before Trial of the
Plaintiff THOMAS DESOUSA, pursuant to Notice,
before Elizabeth Scheibe, a Notary Public of
the State of New York.

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A P P E A R A N C E S:

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A P P E A R A N C E S: (Continued)

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NOT PRESENT

ALSO PRESENT:

NABEELA HAMID, ESQ.

221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.1 Objections at Depositions

(a) Objections in general. No objections shall be made at a deposition except those, pursuant to subdivision (b), (c) or (d) of Rule 3115 of the Civil Practice Law and Rules, would be waived if not interposed, and except in compliance with subdivision (e) of such rule. All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the C.P.L.R.

(b) Speaking objections restricted. Every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. Except to the extent permitted by C.P.L.R. Rule 3115 or by this rule, during the course of the examination persons in attendance shall not make statements or comments that interfere with the questioning.

221.2 Refusal to answer when objection is made

A deponent shall answer all questions at a deposition, except (i) to preserve a privilege or right of confidentiality, (ii) to enforce a limitation set forth in an order of the court, or (iii) when the question is plainly improper and would, if answered, cause significant prejudice to any person. An attorney shall not direct a deponent not to answer except as provided in C.P.L.R. Rule 3115 or this subdivision. Any refusal to answer or direction not to answer shall be accompanied by a succinct and clear statement of the basis therefor. If the deponent does not answer a question, the examining party shall have the right to complete the remainder of the deposition.

221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.3 Communication with the deponent

An attorney shall not interrupt the deposition for the purpose of communicating with the deponent unless all parties consent or the communication is made for the purpose of determining whether the question should not be answered on the grounds set forth in section 221.2 of these rules and, in such event, the reason for the communication shall be stated for the record succinctly and clearly.

IT IS FURTHER STIPULATED AND AGREED that the transcript may be signed before any Notary Public with the same force and effect as if signed before a clerk or a Judge of the court.

IT IS FURTHER STIPULATED AND AGREED that the examination before trial may be utilized for all purposes as provided by the C.P.L.R.

IT IS FURTHER STIPULATED AND AGREED that all rights provided to all parties by the C.P.L.R. cannot be deemed waived and the appropriate sections of the C.P.L.R. shall be controlling with respect hereto.

IT IS FURTHER STIPULATED AND AGREED by and between the attorneys for the respective parties hereto that a copy of this examination shall be furnished, without charge, to the attorneys representing the witness testifying herein.

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2 T H O M A S D E S O U S A, called as a
3 witness, having been duly sworn by a
4 Notary Public, was examined and
5 testified as follows:

6 EXAMINATION BY

7 MR. BARBARA:

8 Q. Please state your full name for
9 the record.

10 A. Thomas Desousa.

11 Q. Please state your home address
12 for the record.

13 A. 329 Grand Central Avenue,
14 Amityville, New York 11701.

15 MR. BARBARA: Please mark
16 these as Defendant's Exhibits A, B,
17 C, D and E.

18 (Defendant's Exhibits A, B, C,
19 D and E, Documents, were marked for
20 identification.)

21 Q. Good afternoon, Mr. Desousa.

22 A. Good afternoon.

23 Q. My name is Jason Barbara. I
24 represent Richard Calvagno in these
25 proceedings. I am going to be asking you a

1 T. DESOUSA

2 series of questions.

3 A. Yes.

4 Q. Have you ever participated in a
5 deposition before?

6 A. Yes.

7 Q. If I ask you a question and you
8 don't understand it I'd be happy to clarify
9 for you. Try not to speak over each other so
10 that the court reporter can get a clear
11 answer, okay?

12 A. Yes.

13 Q. Mr. Desousa, what is your current
14 address?

15 A. 329 Grand Central Avenue,
16 Amityville, New York 11701.

17 Q. Are you the owner of that
18 property?

19 A. My wife and myself.

20 Q. And you own it by tenants in the
21 entirety?

22 A. Excuse me?

23 Q. You own that as tenants in the
24 entirety as husband and wife?

25 A. Um-hmm.

1 T. DESOUSA

2 Q. How long you have lived at that
3 residence?

4 A. 21 years.

5 Q. I am going to show you a series
6 of documents, sir. We are going to start with
7 what we've marked as Defendant's Exhibit A for
8 identification. I am going to show this to
9 you. You can take a look at it.

10 A. (Witness perusing document.)
11 Okay.

12 Q. Have you seen that document
13 before in these proceedings?

14 A. I don't think so.

15 Q. If you take a look at the first
16 page where the stamp is, if you look below the
17 stamp, do you see bold lettering right
18 below --

19 A. Right.

20 Q. What does it say?

21 A. Notice for discovery and
22 inspection.

23 Q. Just to take it a step further,
24 do you recall providing any documentation to
25 your lawyer for discovery purposes?

1 T. DESOUSA

2 A. Of course.

3 Q. If I can have that document back,
4 sir. Take a look at what has been marked as
5 Defendant's Exhibit B for identification,
6 please.

7 A. Okay.

8 Q. Mr. Desousa, if you could take a
9 look again under the blue sticker there is
10 some bold writing; if you could ID that for
11 the record what the document is labeled as?

12 A. Notice for examination before
13 trial.

14 Q. And you are here today for an
15 examination before trial, correct?

16 A. Right.

17 Q. I am going to show you what has
18 been marked as Defendant's Exhibit C.

19 A. Okay.

20 Q. Take a look again, sir. Just for
21 the record, under the blue sticker in bold so
22 we can identify that for the record, please.

23 A. Combined demands.

24 Q. I can have that back.

25 I am going to give you what has

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2 been marked as Defendant's Exhibit D. For the
3 record, sir, if you can look under the blue
4 sticker and tell us what that document is.

5 A. Demand for bill of particulars.

6 MR. BARBARA: If I could have
7 that back, sir.

8 If we can mark this Exhibit F
9 and this as Exhibit G.

10 (Defendant's Exhibits F and G,
11 Documents, were marked for
12 identification.)

13 Q. Take a look, sir, at -- take a
14 look at E.

15 A. I am looking at it as you're
16 going through.

17 Q. Mr. Desousa, do you recognize
18 that document which has been marked as
19 Defendant's E?

20 A. Part of it, yes.

21 Q. What do you recognize that
22 document to be?

23 A. Part of the electronic filing of
24 the complaint -- explanation of the complaint.

25 Q. When you say "complaint," your

1 T. DESOUSA

2 understanding is that that's your complaint
3 where you are a Plaintiff and you commenced a
4 lawsuit against Mr. Calvagno and Mr. Karcher?

5 A. Right.

6 Q. If you take a look at the very
7 end of that document, tell me if you see your
8 signature anywhere on that document at the
9 very end?

10 A. I just want to make sure I know
11 what I am talking about.

12 (Speaking simultaneously.)

13 Q. Do you see your signature on the
14 back?

15 A. Yeah, I do.

16 Q. And your signature was notarized,
17 correct, and verified?

18 A. Yup.

19 Q. You understand that this document
20 is a sworn pleading, correct?

21 A. Yeah, I do.

22 Q. If I could have that back. Mr.
23 Desousa, I am going to show you what has been
24 marked as Defendant's F.

25 A. Okay.

12

1 T. DESOUSA

2 Q. If you can identify that for the
3 record.

4 A. Bill of particulars.

5 Q. Just if you could, Mr. Desousa,
6 at the end on the last page, on the
7 verification page, do you see your signature?

8 A. My signature.

9 Q. And you also see your wife's,
10 correct?

11 A. Yes.

12 Q. By the way, where it says bill of
13 particulars, am I correct that this is
14 actually your response to our demand for a
15 bill of particulars; is that your
16 understanding?

17 Although it doesn't say it there,
18 are these your responses?

19 A. I don't know.

20 Q. Take a look.

21 A. I'd have to study it a little
22 bit.

23 Q. Take a look just so it is clear.

24 A. I guess it is.

25 MR. CUOMO: Initially, for the

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2 record, which one was it?

3 THE WITNESS: Bill of
4 particulars.

5 MR. CUOMO: Exhibit D is a
6 demand for bill of particulars and
7 this is the bill of particulars that
8 was responded to.

9 MR. BARBARA: Correct. It is
10 not labeled as such.

11 Q. I am going to show you what has
12 been marked as Defendant's G.

13 MR. CUOMO: Again, what this
14 is going to be the combined demands
15 that was Exhibit C. This is the
16 response.

17 Q. Do you recognize that,
18 Mr. Desousa?

19 A. Vaguely.

20 Q. And you see your signature and
21 your wife's signature verified?

22 A. Yup.

23 MR. BARBARA: Let's mark this
24 as Exhibit H.

25 (Defendant's Exhibit H,

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2 Photographs, was marked for
3 identification.)

4 MR. BARBARA: Just for the
5 record, behind H consists of maybe 50
6 to 75 photographs that were provided.

7 Q. If you could, Mr. Desousa --
8 (Speaking simultaneously.)

9 MR. CUOMO: They did provide
10 them in hardcopy.

11 MR. BARBARA: Just to clarify
12 the record, the more than 50 photos
13 are actually from the Plaintiff.

14 The photographs attached are
15 from our objections.

16 MR. CUOMO: Okay.
17 (Speaking simultaneously.)

18 MR. BARBARA: Also, a police
19 report is attached to the objections
20 as well.

21 Q. Mr. Desousa, these are Mr.
22 Calvagno's objections, correct?

23 A. Okay.

24 Q. Discovery objections?

25 A. Okay.

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2 Q. Have you ever seen that document?

3 A. I think I have, yes.

4 Q. If I can have that back, sir.

5 Mr. Desousa, what we marked as

6 Defendant's E, which you identified, it was

7 verified on January 8th of 2021, which you

8 identified as the summons and complaint and it

9 was filed in Suffolk County on January 8,

10 2021.

11 Does that sound about right?

12 A. Right.

13 Q. Yourself Thomas Desousa and your

14 wife Diane Desousa are the Plaintiffs,

15 correct?

16 A. Right.

17 Q. And the cause of action that you

18 asserted you assert against Richard Calvagno

19 II my client and also Patrick Karcher; is that

20 your understanding?

21 A. That's right.

22 Q. I am going to be asking you a

23 series of questions about your actual

24 complaint, okay?

25 A. Yup.

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2 Q. Specifically, I am looking at a
3 paragraph -- I will show it to you as I ask
4 the questions.

5 Page two --

6 MR. CUOMO: What paragraph?

7 MR. BARBARA: If you could
8 show him page two. Put it in front
9 of the witness so he can see it.

10 Q. Mr. Desousa, take a look at page
11 two, paragraph four.

12 A. Okay.

13 Q. You can see it up top here?

14 A. Yup.

15 Q. You asserted in that paragraph
16 that the Plaintiffs are the fee owners and
17 residents of a parcel of property together
18 with the home and all structures and items
19 known as 320 Grand Central Avenue, Amityville,
20 New York 11701.

21 Do you see that?

22 A. Yup.

23 Q. You are the Plaintiff in this
24 action, correct?

25 A. Yup.

1 T. DESOUSA

2 Q. Just so we are clear, is that an
3 error?

4 A. Yes.

5 Q. You were referring to the
6 Defendants Mr. Calvagno and Mr. Karcher?

7 A. No. I think -- let me read it.
8 I am not sure. (Unintelligible.)

9 THE COURT REPORTER: Sir, I
10 cannot understand what you are
11 saying.

12 THE WITNESS: I am reading it
13 to myself.

14 MR. BARBARA: Sure. Read it
15 to yourself.

16 A. My answer is I believe they are
17 talking about us, my wife and myself, and the
18 address was just a misprint using 320 instead
19 of 329.

20 Q. Well, if that's the case isn't
21 that what you wrote -- if you turn back a page
22 on paragraph two on the first page, if you go
23 to the first page, paragraph two --

24 A. No, you don't have that --

25 Q. Take a look at that, Mr. Desousa.

1 T. DESOUSA

2 Am I correct that paragraph two refers to you
3 being the owner of 329, correct?

4 A. That's what I would assume.

5 Q. Right. So if we go back to
6 paragraph four, am I correct that you and your
7 wife as Plaintiffs are not the fee owners of
8 320 Grand Central Avenue?

9 A. No, we are not.

10 Q. That reference to Plaintiffs
11 should have been a reference to the
12 Defendants?

13 A. Probably, but I have no -- I am
14 not able to answer that as far as what John
15 did when he did that.

16 MR. CUOMO: Off the record.

17 (A discussion was held off the
18 record.)

19 Q. Mr. Desousa, now looking at
20 paragraph four, you allege that they're fee
21 owners of 320 Grand Central Avenue, correct?

22 A. Yup.

23 Q. In terms of the property at 320
24 Grand Central Avenue, prior to bringing this
25 lawsuit, can you tell us what efforts or due

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2 diligence you did to check any records as to
3 who the actual owners of 320 Grand Central
4 Avenue were?

5 A. I probably looked in Babylon,
6 Amityville -- what you call tax records.

7 Q. Did you ever check the County
8 Clerk's office? Did you ever go to the County
9 Clerk's office?

10 A. No.

11 Q. Did you ever do a title search?

12 A. (Unintelligible).

13 THE COURT REPORTER: Please
14 speak up.

15 A. I did not.

16 Q. At any point in this case did you
17 come to learn that Richard Calvagno does not
18 own 320 Grand Central Avenue?

19 A. Does not own it?

20 Q. Does not own the property. Did
21 you ever come to learn that in these
22 proceedings?

23 A. He's a partial owner.

24 MR. CUOMO: Objection.

25 MR. BARBARA: You can object

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2 to form. He has to answer the
3 question.

4 Q. Did you ever come to know that
5 Mr. Calvagno was not an owner of the property?
6 That is all I am asking.

7 A. Did I ever come to know that he
8 is not the owner?

9 Q. Correct. That is the question.

10 A. No, I did not because the
11 property is owned by him and someone else.

12 Q. You alleged in -- moving on, the
13 same page -- I don't know if you have it in
14 front of you, Mr. Desousa -- on paragraph
15 nine, you wrote that "upon information and
16 belief that Defendant's Dodge automobile has a
17 modified exhaust system."

18 Do you see that?

19 A. Right.

20 Q. "Which either fails to
21 sufficiently muffle the automobile's sound
22 when the engine is running or intentionally
23 amplifies that noise and makes it excessive."

24 Do you see that?

25 A. Yes, I do.

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2 Q. Where did you get the source of
3 information --

4 MR. CUOMO: Objection. It
5 states it right there --

6 MR. BARBARA: You can object
7 all you want. He has to answer it.
8 You can object to form --

9 MR. CUOMO: I am objecting to
10 the form. I am also objecting to the
11 question. You are asking about --

12 MR. BARBARA: You can object
13 to form. Your only objection can be
14 to form. This is a deposition.

15 If you keep disrupting the
16 deposition we will get a ruling from
17 the judge.

18 MR. CUOMO: I have a right to
19 object.

20 MR. BARBARA: Yes, to form --
21 (Speaking simultaneously.)

22 MR. BARBARA: Let's get the
23 judge on the phone and ask the judge.

24 MR. CUOMO: Call him anytime
25 you'd like.

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2 Q. Sir, the question is how do you
3 know that the exhaust system is modified?

4 A. How?

5 Q. Yes.

6 A. Because of the noise it makes.

7 Q. Your position is because the
8 muffler is loud that it's a modified exhaust
9 system; that is your testimony?

10 A. I assume it's modified.

11 MR. BARBARA: Let's mark this
12 Exhibit I.

13 (Defendant's Exhibit I,
14 Letter, was marked for
15 identification.)

16 Q. Take a look at this document --
17 (Speaking simultaneously.)

18 Q. Take a look at what has been
19 marked as Exhibit I. Take a look at this
20 document, sir.

21 A. Okay. I've seen that.

22 Q. So you've seen this in this case,
23 right?

24 A. Yes.

25 Q. When did you first see this

1 T. DESOUSA

2 document and what is this document?

3 A. We provided it at discovery.

4 Q. What is this document?

5 A. A letter from Westbury Motors.

6 Q. What is your understanding of the
7 contents of the letter?

8 A. The letter says that the exhaust
9 on this is not modified.

10 MR. CUOMO: For the record, it
11 is an unsworn --

12 MR. BARBARA: I don't know --
13 (Speaking simultaneously.)

14 THE COURT REPORTER: One at a
15 time.

16 MR. BARBARA: Off the record.
17 (A discussion was held off the
18 record.)

19 THE WITNESS: This is not an
20 independent, scientific explanation
21 of Calvagno's exhaust. It is not.

22 All I did was repeat what's on
23 the letter, not what I believe.

24 MR. BARBARA: Move to strike
25 that. Thank you.

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2 Q. We are going back to the
3 pleading, please. Now, you wrote -- take a
4 look at paragraph 12 if you would, please.

5 Sir, you understand by the way,
6 I'd asked you earlier that this pleading is a
7 sworn document, correct? It was verified by
8 you; you understand that, correct?

9 MR. CUOMO: Objection. Asked
10 and answered.

11 Q. Sir, you understand that?

12 A. Yes.

13 Q. On the --

14 A. Let me make sure of what we are
15 doing.

16 Q. Take a look at the last page.

17 A. Okay. Go ahead. I'm ready.

18 Q. You wrote, or at least your
19 attorney wrote on your behalf and you verified
20 it, "that the Defendant's operation --

21 MR. CUOMO: Objection. You're
22 misreading it --

23 (Speaking simultaneously.)

24 MR. BARBARA: The Defendant's
25 operation --

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2 (Speaking simultaneously.)

3 MR. BARBARA: I will let you
4 read it --

5 MR. CUOMO: Read paragraph 12
6 in its entirety.

7 THE COURT REPORTER: Please
8 read slowly and clearly.

9 A. "Upon information and belief
10 Defendant's operation of a Dodge automobile
11 violates New York State, Suffolk County noise
12 codes and create an unnecessary, unreasonable
13 interference and intrusion upon the public in
14 general and upon his neighbors in particular."

15 Q. I want to make sure you're
16 finished.

17 A. I am done.

18 Q. My question for you, Mr. Desousa,
19 is what New York State law and county noise
20 code were you referring to?

21 A. The county noise code?

22 Q. Yes.

23 A. They both have -- I don't have it
24 with me. That the decibels exceed a certain
25 level are illegal in New York State at the

1 T. DESOUSA

2 time this lawsuit was commenced. That's my
3 answer.

4 Q. But you also identified a moment
5 ago in Defendant's I, which is the letter from
6 Jeep, which stated that there was no
7 modification of the exhaust, correct?

8 A. That has nothing to do with this.

9 Q. I am --

10 A. This is has nothing to do --

11 MR. CUOMO: I object to form.

12 (Speaking simultaneously.)

13 A. That letter has not a thing to do
14 with this. You asked me what noise code it
15 violates. That letter has nothing to do with
16 this. That letter has nothing to do with
17 this.

18 Q. By the way, did you ever call the
19 police regarding this issue with noise?

20 A. Recently we sent letters.

21 Q. That was not the question --

22 (Speaking simultaneously.)

23 Q. Did you ever call the --

24 A. Probably I did. For two reasons;
25 the noise and the excessive time he runs his

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2 car.

3 Q. Do you know if Mr. Calvagno ever
4 called the police on you?

5 A. Yes, he did.

6 Q. And, sir, as part of the
7 discovery in this matter --

8 MR. BARBARA: Withdrawn.

9 Q. You reviewed the discovery that
10 we turned over on behalf of Mr. Calvagno?

11 A. Yes, I did.

12 Q. Take a look, sir, at what we
13 marked as Defendant's H.

14 A. Okay.

15 Q. What is that, sir?

16 A. Copy of a police report.

17 Q. Can you read at the bottom of the
18 police report, the narrative, what it says.

19 A. "Called and request police to
20 respond for neighbor dispute. Cop was
21 interviewed and stated he warmed his vehicle
22 up in the morning and his neighbors across the
23 street does not like it. Cop states his
24 neighbors yelled at him and videotapes when he
25 starts his car. Mr. Desousa neighbor was

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2 interviewed and was told it was not illegal
3 for Mr. Calvagno to warm his car up in the
4 morning. Cop would like to document this
5 incident."

6 Q. This in not the incident where
7 you called the police where you stated before,
8 correct?

9 A. I did not call the police.

10 Q. Not on this occasion --

11 A. I did not call them on that.

12 Q. By the way, do you know how many
13 times you called the police?

14 A. I don't know. Once or twice. I
15 don't know.

16 Q. Did the police take any action?

17 A. There were more reasons.

18 Q. Did the police take any action is
19 my question?

20 A. Yes.

21 Q. What did they do?

22 A. They went up the block and waited
23 for Calvagno.

24 Q. And did what?

25 A. Issued a ticket.

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2 Q. What kind of ticket?

3 A. I don't know.

4 Q. Did you ever see --

5 A. I didn't.

6 Q. So you --

7 (Speaking simultaneously.)

8 THE COURT REPORTER: One

9 person at a time.

10 Q. You didn't actually see the
11 tickets, correct?

12 A. No, I haven't seen them. You
13 should provide them as part of discovery.

14 Q. Thank you for the advice.

15 A. You're welcome.

16 Q. Let's keep going, sir. We are on
17 paragraph 12.

18 By the way, Mr. Desousa, you
19 provided videos in this proceeding, correct?

20 A. Yes, I did.

21 Q. And your photographs?

22 A. Yes, I did.

23 Q. On paragraph 13 -- I am going to
24 make it easier and I will let you read it so
25 there is no issue with the way I interpret the

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2 paragraph on 13.

3 MR. CUOMO: Objection.

4 MR. BARBARA: What is your
5 objection?

6 MR. CUOMO: I object to the
7 statement as you stated it.

8 MR. BARBARA: I don't want you
9 to object, so I am going to let your
10 client read it to make it easier.

11 MR. CUOMO: What I objected to
12 before, and put this on the record,
13 is you were reading part of the
14 paragraph and not the full paragraph.

15 I never made any statement or
16 claim that you were interpreting it.

17 Q. Sir, if you could please read
18 paragraph 13.

19 A. "Further exacerbating his actions
20 when leaving the driveway proceeding on a
21 public street the Defendant would speed away
22 driving recklessly and loudly down a public
23 street."

24 Q. Just so we are clear, the videos
25 that you provided you've viewed them?

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2 A. Of course.

3 Q. In any of the videos that you
4 provided is there any video that would show
5 Mr. Calvagno, in your words, speeding away
6 driving recklessly in front of your house?

7 A. Absolutely is my answer.

8 Q. As a matter of fact, have you
9 seen Mr. Calvagno's videos?

10 A. Of course.

11 Q. Do you have a black truck?

12 A. I do now, yes.

13 Q. What kind of black truck is that?

14 A. Jaguar.

15 Q. Is it an R version?

16 A. R?

17 Q. Yes. Is it an R version?

18 A. I don't know. I don't know that
19 it is.

20 Q. Have you seen Mr. Calvagno's
21 videos?

22 A. Yes, I have.

23 Q. Did you see any video where you
24 drove up in front of the Calvagno's house and
25 slammed on the gas on the Jaguar?

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1 T. DESOUSA

2 A. No.

3 Q. By the way --

4 A. The reason I haven't saw that

5 video -- I'd like to explain to you --

6 Q. There is no question.

7 A. May I answer --

8 Q. There is no question --

9 A. I did not see that video because
10 the car in that video is not mine. That car
11 and the date of that video is from 2019. I
12 did not own a black car in 2019.

13 MR. BARBARA: Okay. Move to
14 strike.

15 A. He got a video that shows the
16 date -- a time-stamped date on that video on
17 that is 2019. I did not own a car in 2019.

18 MR. BARBARA: Move to strike.

19 Thank you.

20 Q. By the way, you watched all of
21 his videos?

22 A. I saw them all, yes.

23 Q. Take a look at paragraph 14. Do
24 you see paragraph 14 and 15, Mr. Desousa?

25 A. Yup.

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1 T. DESOUSA

2 Q. And you allege that you would
3 take a decibel measurement; is that correct?

4 A. Yes, I did.

5 Q. Prior to taking those decibel
6 measurements did you do any research on what
7 is the acceptable level of decibel
8 measurements?

9 A. Yes, I did.

10 Q. You did?

11 A. Um-hmm.

12 Q. What is your understanding of
13 acceptable decibel measurements for a car?

14 A. That level of decibels that I
15 recorded were in excess of New York State law
16 at the time -- at the time I took them.

17 Q. And when you did your research
18 did you research anything according to the
19 American Academy of Audiology?

20 A. No.

21 MR. BARBARA: Please mark
22 this.

23 (Defendant's Exhibit J,
24 Document, was marked for
25 identification.)

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2 Q. Mr. Desousa, when you were doing
3 your research did you come to learn that
4 decibels for vehicles are acceptable up to 80
5 decibels; did you learn that in your research?

6 A. No, I did not. I don't know
7 where it was -- the decibel. I would have to
8 review my notes on it. I do not have them
9 with me.

10 Q. I am going to mark this -- I just
11 want to know if when you did your research if
12 you came across this decibel chart by the
13 American Academy of Audiology?

14 MR. CUOMO: Note my objection
15 to the document.

16 MR. BARBARA: Sure.

17 A. It says here they're loud after
18 70 decibels.

19 Q. I am asking if you ever came
20 across that in your research?

21 A. I don't know if I saw it, but it
22 says right there in excess of 70 decibels is
23 loud. That's what it says. Let's get to the
24 point.

25 Q. I am trying to get to all your

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2 points. Paragraph 19, Mr. Desousa --

3 A. Yup. The point is the car
4 exploded every morning.

5 Q. Let me ask you another question,
6 Mr. Desousa, before we move on. When did you
7 buy that Jaguar?

8 A. 2020.

9 Q. Have you ever had any arguments
10 with Mr. Calvagno's father?

11 A. About what?

12 Q. In general.

13 A. Not an argument.

14 Q. None in the street?

15 A. Discussions.

16 Q. You were never screaming at each
17 other?

18 A. I don't know if we were screaming
19 at each other. I don't remember.

20 Q. Did you ever tell Mr. Calvagno's
21 father that you bought the Jaguar to bust his
22 son's balls?

23 A. No.

24 Q. By the way, you understand that
25 you are also under oath here?

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2 A. I know that.

3 Q. Take a look at paragraph 19,

4 Mr. Desousa.

5 A. Okay.

6 Q. Can you read that paragraph, sir.

7 A. "Weather permitting we are now
8 unable to open our windows to enjoy fresh,
9 outdoor air because we were forced to keep our
10 windows closed to limit excessive noise and
11 vibration. We are forced to run our air
12 conditioner which has increased electric
13 bills. Unfortunately even with the windows
14 closed we can still hear the noise and feel
15 the vibration."

16 Q. You can't open your windows at
17 your house?

18 A. No, we don't.

19 Q. Let me ask you this, do you ever
20 open the windows to videotape Mr. Calvagno's
21 house?

22 A. Yes, I do.

23 Q. So you do?

24 A. I open my window in one room just
25 enough that I can put a video in that window

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2 to take videotape and to put a meter --
3 decibel meter. That's what I do. That's why
4 the window is open.

5 Q. Paragraph 20, if you could read
6 that.

7 A. "Defendant's actions create
8 excessive noise and vibration which are
9 upsetting to both Plaintiffs causing stomach
10 upset, nausea, manifesting itself in other
11 physical ways as well."

12 Q. Let me be clear on what you were
13 referring to there.

14 When you said "Defendant's
15 actions created," which actions were you
16 referring to just so I understand?

17 A. All of his actions.

18 Q. Which one of those actions caused
19 you to have an upset stomach?

20 A. In particular, this one relates
21 to the excessive noise and vibration in
22 particular.

23 Q. Just so --

24 A. An answer to your question -- an
25 answer to your question, item 20 refers to

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2 only to excessive noise and vibration.

3 Q. So your testimony is that
4 excessive noise and vibration caused you to
5 have a stomach upset, correct?

6 A. Yes.

7 Q. When was the last time you had a
8 stomach upset caused by that noise and
9 vibration?

10 A. Every day that car starts.

11 Q. Every day?

12 A. Yup.

13 Q. Have you gone to a physician or a
14 doctor as a result of that?

15 A. Yes, I did.

16 Q. Let's start with when you have
17 gone to the doctor, the first time you went to
18 the doctor as a result of this excessive noise
19 and vibration for the stomach upset?

20 A. The first time I went?

21 Q. Yes.

22 A. I've been going.

23 Q. Let's talk about the first time
24 that you went. Your stomach hurt and you went
25 to the doctor. I want to know when that first

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1 T. DESOUSA

2 time was?

3 A. I have been going back and forth
4 to doctors for the stomach.

5 Q. Which doctor have you gone to?

6 A. How many of them?

7 Q. You tell me --

8 A. There are many.

9 Q. You can't --

10 (Speaking simultaneously.)

11 A. Dr. Benhuri. Dr. Goldfarb.

12 Q. What is Dr. Goldfarb's first
13 name?

14 A. He's a gastroenterologist.

15 Q. What is his first name?

16 A. I don't know his first name.

17 He's retired right now.

18 Q. Who else?

19 A. I was given another man from his
20 practice. I would have to go through my
21 records to provide you more doctors' names.

22 MR. BARBARA: We will leave a
23 space in the record for that.

24 (INSERT)

25 Q. Let's move on, sir. You also

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2 then wrote nausea. Is that separate from the
3 stomach upset?

4 A. No, one in the same.

5 Q. You also then wrote "manifesting
6 itself in other physical ways as well."

7 Can you please describe for the
8 record what "other physical ways as well," you
9 mean you're referring to?

10 A. Nervousness.

11 Q. Nervousness?

12 A. Waiting for that car to explode
13 and that wait -- that wait every morning
14 creates nervousness.

15 Q. Have you sought any medical
16 attention regarding the nervousness?

17 A. Probably with Dr. Benhuri.

18 Q. Were you prescribed any
19 medication for any of these ailments?

20 A. Not really.

21 Q. When was the last time you saw
22 Dr. Benhuri for any of these ailments?

23 A. About three weeks ago.

24 Q. Take a look at paragraph 21.

25 It's the next paragraph, Mr. Desousa. I am

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2 interested in the last sentence in paragraph
3 21.

4 A. Okay.

5 Q. What does that last sentence say?

6 A. "Plaintiff's have stopped taking
7 walks because of the danger posed by
8 Defendant's reckless driving."

9 Q. Do you ever walk with a cane?

10 A. Only after operations.

11 Q. In the last two years have you
12 ever walked with a cane?

13 A. Absolutely.

14 Q. Is it your testimony, sir, that
15 you have not walked on your street --

16 A. Grand Central Avenue.

17 Q. -- you have not walked on Grand
18 Central Avenue since --

19 A. I did walk on Grand Central
20 Avenue after my operation in June '21.

21 Q. Is that after this lawsuit
22 started?

23 A. I walked in the opposite
24 direction of Calvagno's house and I walked in
25 the street because the doctor told me I need

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1 T. DESOUSA

2 to do that.

3 Q. So you haven't stopped walking in
4 the street?

5 A. I do not walk on the street. I
6 told you I do not walk on the street. I only
7 walked in the street because the doctor --
8 because the doctor asked me to get exercise in
9 the street after an operation.

10 I got -- I turned to the right
11 and walked towards the end of my block away
12 from Calvagno's house.

13 Q. Is that one occasion that you
14 were walking?

15 A. Probably that's all I walked,
16 once or twice.

17 Q. Now, if we can turn to paragraph
18 22. It's actually on the same page, the next
19 paragraph.

20 If you could read that, Mr.
21 Desousa.

22 A. "Defendant's actions created
23 excessive noise, vibration and road danger
24 which does decrease and diminish the values of
25 the Plaintiff's home. In addition creating

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2 stress which has manifested itself in
3 sleeplessness and other stress related
4 ailments."

5 Q. I just want to break that down
6 for one moment. I am asking you about -- you
7 make an allegation that the value of your home
8 has diminished as a result of Mr. Calvagno's
9 actions, correct?

10 A. Yes.

11 Q. Do you have any report that would
12 reflect the fact that your property has been
13 diminished as a result of Mr. Calvagno?

14 A. Not as yet. I can get it.

15 Q. You don't have one?

16 A. I can get one.

17 Q. I am asking you about when you
18 swore to this in your complaint did you have a
19 report that showed that the value of your
20 house had diminished as a result of
21 Mr. Calvagno's actions?

22 A. At the time of the report I did
23 not --

24 Q. You meant at the time of the
25 complaint --

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2 A. I can get that any time I would
3 like.

4 Q. Now, if you can move to -- I'm
5 sorry, on that same paragraph you also spoke
6 about "manifesting itself in sleeplessness and
7 other stress related ailments," correct?

8 A. Yup.

9 Q. I believe you had said before
10 that you were not prescribed any medication
11 for the upset stomach and the nausea.

12 Have you been prescribed any
13 medication for the sleeplessness and other
14 stress related ailments?

15 A. No.

16 Q. Now, on the top of page five
17 there is a heading in your pleading that
18 states "Defendants renting boat slips."

19 Do you see that?

20 A. Yup.

21 Q. According to you the Defendants
22 have a dock behind their house, correct?

23 A. Bulkhead.

24 Q. And you had stated, am I correct,
25 that during the 2020 boating season they had

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1 T. DESOUSA

2 rented boat slips --

3 A. Yeah.

4 Q. -- is that correct sir?

5 A. Every boating season they rent
6 boat slips.

7 Q. So it is not just limited to
8 2020?

9 A. No.

10 Q. How do you know that they rent
11 the boat slips?

12 A. It's obvious.

13 Q. I am asking you --

14 A. Excessive amounts of boats in his
15 yard which he claims are relatives. They are
16 not.

17 Q. Have you ever seen any type of
18 rental agreement to --

19 (Speaking simultaneously.)

20 THE COURT REPORTER: Excuse
21 me, you have to let him finish the
22 question. Please let him finish the
23 question.

24 Can you please repeat the
25 question.

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2 Q. Have you ever seen any rental
3 agreements that would reflect boats being
4 rented in the back of the home?

5 A. No, I have not, but I witnessed
6 cars parked in the street that got to their
7 boats back and forth from their boats. They
8 park in the street, park in front of my house.

9 Q. By the way, am I correct that the
10 way your house sits, your house is across the
11 street from the front of his house, correct?

12 A. Yes.

13 Q. And your house does not sit on
14 the water?

15 A. I am on the water in the back.

16 Q. The back of your house?

17 A. Right.

18 Q. Across the street is
19 Mr. Calvagno's house and then behind his house
20 would be where the boats are?

21 A. He has a canal on the side and
22 the back of his house.

23 Q. So a boat can be both on the side
24 and the back?

25 A. That's exactly right.

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1 T. DESOUSA

2 Q. Moving along to where you have
3 paragraph C, it's identified as "Defendants
4 renting back and side yard as a catering
5 hall."

6 A. Yup.

7 Q. Do you see that?

8 A. Yup.

9 Q. You state that "Defendants have
10 rented out parts of the property for parties,"
11 correct?

12 A. Yes.

13 Q. How do you know that?

14 A. How do I know, because he had a
15 wedding at the house in October of -- I think
16 it was 2020 or 2021.

17 Q. So the fact that he had that
18 function there leads you to believe he is
19 renting out his property for parties?

20 A. Certainly. He rented -- because
21 he had a catering truck bringing in tables.

22 Q. So you never thought that could
23 have been a party for himself or his family?

24 A. Well, he had a wedding ring
25 balloon with two wedding ring balloons that

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2 joined on the side of his house.

3 Q. Do you know that if any of --

4 (Speaking simultaneously.)

5 THE COURT REPORTER: Please

6 let him finish the question.

7 THE WITNESS: I did let him

8 finish the question.

9 THE COURT REPORTER: I can

10 only take one person down at a time.

11 This applies to--

12 THE WITNESS: I was asking --

13 THE COURT REPORTER: It will

14 not be on the record. I have asked

15 several times and I am not asking

16 again. I cannot take down multiple

17 people speaking at a time.

18 Can you please repeat the

19 question.

20 Q. You don't know if one of his

21 family members got married on the property,

22 correct?

23 A. No, I do not.

24 Q. You've never seen any rental

25 agreements for the purposes of renting homes

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2 out for parties, correct?

3 A. No, I have not.

4 Q. By the way, you've only
5 mentioned, at least in paragraph 30, I believe
6 it's two occasions; is that correct?

7 A. Yes.

8 Q. By this way, prior to this
9 lawsuit did Mr. Calvagno ever have parties at
10 his house prior to these two occasions?

11 A. Yes.

12 Q. Were you ever present at those
13 parties?

14 A. Yes, I was.

15 Q. You also have a provision in your
16 pleading or heading, that the "Defendant
17 permits trash and debris all about their
18 property."

19 A. Yes, he does.

20 Q. When you were talking about trash
21 and debris, can you be more specific what
22 you're referring to?

23 A. There is construction debris.
24 There is -- there are trucks on his property,
25 whoever trucks they belong to. He leaves them

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1 T. DESOUSA

2 there for extended period of time. He leaves
3 a mess on his property constantly. He just
4 recently started cleaning it up, but there is
5 a mess on his property constantly.

6 Q. Am I correct that there was
7 construction on that property which enlarged
8 the driveway?

9 A. For four years -- for four years
10 there was.

11 MR. BARBARA: Move to strike.

12 Q. The question was --
13 (Speaking simultaneously.)

14 MR. BARBARA: It's a yes or no
15 answer.

16 (Speaking simultaneously.)

17 Q. The question is --

18 MR. CUOMO: You asked --

19 (Speaking simultaneously.)

20 Q. I am looking for a yes or no
21 answer. Was there construction on the
22 property that resulted in a larger driveway?

23 A. That resulted in a larger
24 driveway?

25 Q. Yes. Was there construction on

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2 the driveway? Let's start with that; yes or
3 no?

4 A. On his driveway?

5 Q. Yes.

6 A. Yes.

7 Q. Was the driveway enlarged?

8 A. Yes, it was.

9 Q. Was there debris and equipment
10 while the construction was going on during
11 that time period?

12 A. There was more construction than
13 just that driveway. That's my answer.

14 Q. Was there debris during the
15 construction on the property?

16 A. Absolutely.

17 Q. And you took photographs of the
18 construction, correct?

19 A. Yes, I did.

20 Q. I am going to let you read it,
21 paragraph 40, Mr. Desousa.

22 Do you see that?

23 A. Okay.

24 Q. Can you read that paragraph.

25 A. "Is an eyesore and ripe for

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2 insect, vermin infestation which would spread
3 to surrounding properties including that of
4 the Plaintiffs."

5 Q. So you never actually saw insect
6 and vermin, correct?

7 A. Oh, yes, I have.

8 Q. Am I correct that you wrote that
9 "it's an eyesore and is ripe for insects and
10 vermin."

11 A. I had insects and vermin.

12 Q. Can you show me where in this
13 complaint under this heading where you state
14 that you actually see that?

15 A. We'd have to revise it now
16 because I have had an exterminator to -- to
17 treat for that rat infestation.

18 Q. At Mr. Calvagno's --

19 A. My property.

20 Q. Your position now today is that
21 is as a result of his behavior?

22 A. That's right.

23 Q. Again, I am just going back for a
24 moment, Mr. Desousa, under the last heading.
25 It's actually paragraph 37. This is under the

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2 heading of renting the backyard and side yard
3 as catering hall.

4 Take a look at paragraph 37.

5 A. Okay.

6 Q. If you could just read that.

7 A. "Defendant's actions create
8 excessive noise, vibration, congestion,
9 generate waste, garbage and increases the
10 chance of infestation of insects and vermin
11 which decreases and diminishes the value and
12 worth of Plaintiff's home."

13 Q. Again, similar to what I had
14 asked you earlier, do you have any report or
15 document that states that your house has
16 diminished in value as a result of
17 Mr. Calvagno's actions under this heading?

18 A. I do not now, but I can get them.

19 MR. BARBARA: I am almost done
20 with the actual pleading and then I
21 am going into a different area. Why
22 don't we take a break.

23 MR. CUOMO: I don't want to
24 take a break.

25 THE COURT REPORTER: I would

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2 like a break.

3 MR. CUOMO: You need a break?

4 THE COURT REPORTER: Yes, I

5 need a break.

6 (A recess was taken.)

7 Q. Mr. Desousa, take a look at the
8 next page, page seven. I am looking at the
9 heading "Plaintiff requests Defendant to stop
10 their activities," specifically paragraph 42.

11 Do you see that?

12 A. Right.

13 Q. Do you see that?

14 A. Yup.

15 Q. Did you file a complaint
16 concerning the catering activities and boat
17 slip rental?

18 A. Boat slip rental.

19 Q. Where it says that "he registered
20 complaints concerning catering activities,"
21 that's not accurate?

22 A. Calvagno probably.

23 Q. You did register a complaint
24 concerning --

25 A. With him.

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1 T. DESOUSA

2 Q. With him?

3 A. I assume so yeah. We never sent
4 in a complaint.

5 Q. So you were referring to --

6 A. I don't think there's a complaint
7 about catering, no.

8 Q. Have you ever used any derogatory
9 language towards Mr. Calvagno?

10 A. No.

11 Q. You've never called him a
12 homosexual?

13 A. No, I did not.

14 Q. You never called him a fagot?

15 A. No, I did not.

16 Q. Did you ever come to learn that
17 he is a homosexual?

18 A. I know that he is.

19 Q. When did you first come to learn
20 that?

21 A. He has a boyfriend ever since he
22 moved into the house.

23 Q. By this way, when did he move
24 into the house?

25 A. I think 2018 or '19. Maybe. I

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1 T. DESOUSA

2 am not sure.

3 Q. Who lived in that property before
4 Mr. Calvagno moved in?

5 A. Giovanni Apria.

6 Q. And he's not related to
7 Mr. Calvagno?

8 A. No, that I know of.

9 Q. Besides Mr. Calvagno, do any of
10 Mr. Calvagno's relatives live in the house?

11 A. I think they did from time to
12 time, yes.

13 Q. Do you know who else --

14 A. I think -- I think his mother and
15 father lived with him for a while.

16 Q. Not anymore?

17 A. I don't think so.

18 Q. On the bottom of page eight,
19 that's on the next page, sir, paragraph 52, do
20 you see the very bottom, the last paragraph on
21 52 --

22 A. Yup.

23 Q. You are talking about seeking
24 damages in that paragraph, right?

25 A. Yes.

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1 T. DESOUSA

2 Q. And you're stating -- the last
3 sentence you state that you believe you are
4 entitled to compensatory damages?

5 A. Yes.

6 Q. Are you also seeking legal fees?

7 A. If the court allows it, of
8 course.

9 Q. Have you signed a retainer letter
10 with your current lawyer?

11 A. Yes.

12 MR. BARBARA: I am going to
13 make a demand for a copy of that
14 retainer letter and any invoices and
15 amounts paid.

16 Q. If you'd take a look at page 10.
17 I'm sorry, I just want to go back to page
18 nine, Mr. Desousa, under the second cause of
19 action, public nuisance.

20 If you could read paragraph 55
21 for me.

22 A. "Defendant's actions are causing,
23 creating excessive noise, vibrations,
24 congestion, traffic, waste, insects and vermin
25 that offend, interfere with and cause damage

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1 T. DESOUSA

2 to the public and their exercise of rights
3 common to all, such as travelling through the
4 area, using public streets and sidewalks and
5 areas such as residing in their dwellings,
6 attending neighborhood schools etcetera."

7 Q. Am I correct that the street that
8 you live on is a residential street?

9 A. Yes, it is.

10 Q. It is not a double-lane street?

11 A. It is double lane.

12 Q. It's a double-yellow --

13 A. There is no double-yellow, but
14 it's a two-way street.

15 Q. Right, but there are houses on
16 each side, homes?

17 A. I don't understand what you mean
18 because you're asking me about a street.

19 Q. It is not a highway, correct?

20 A. Not a highway.

21 Q. And it's in a residential
22 neighborhood?

23 A. Yes, it is.

24 Q. Where you refer in the second
25 sentence to congestion and traffic, what were

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1 T. DESOUSA

2 you referring to by that?

3 A. When he has his parties and when
4 he has his boats parked -- the people that use
5 the boats that are parked and using his dock
6 facility, they park all over the street.
7 Parties, cars parked all over the streets.

8 His construction debris which has
9 lasted four years, in excess of four years.
10 That's all over in the streets.

11 Q. And your testimony is that
12 creates traffic on your residential street?

13 A. Certainly. It creates traffic
14 what he's doing, repairing his house for the
15 last four years. The parties that he has
16 creates a nightmare in traffic. The dock and
17 the boats creates a nightmare in traffic.

18 Q. Did he ever park his cars in
19 front of your home?

20 A. He has.

21 Q. Did that upset you?

22 A. Does it upset me?

23 Q. Yes.

24 A. Only when he put his truck there.

25 Q. As a matter of fact, when he put

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1 T. DESOUSA

2 his truck there did you ever block each side
3 of his truck with a car?

4 A. I put my cars in the street that
5 day.

6 Q. On each side of the truck?

7 A. Each side of the truck.

8 Q. Would that have prevented him
9 from moving the truck?

10 A. I don't know if would or not.

11 Q. Why did you put a car on each
12 side of the truck?

13 A. I parked my car in the street to
14 clean my driveway.

15 Q. When you did that that day did
16 you have any interaction with Mr. Calvagno or
17 any of his family members?

18 A. His father and mother.

19 Q. You also wrote in that sentence
20 that you just read, sir, Mr. Desousa, you said
21 that on the second sentence, it says "caused
22 damage to the public in exercise of rights to
23 common to all."

24 What did you mean by damage to
25 the public?

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1 T. DESOUSA

2 A. Because you can't walk up and
3 down the block. You can't get out of your
4 house sometimes. You can't get out of your
5 driveway at times.

6 Q. Do you have any photos or videos
7 of what you're referring to, that traffic, the
8 congestion --

9 A. Traffic and congestion -- I have
10 the cars parked in the street which I have
11 given to you already I think.

12 Q. Do you ever park your cars in the
13 street?

14 A. Of course I do.

15 Q. Just getting back to for a moment
16 paragraph 70, under the heading intentional
17 infliction of emotional distress.

18 Do you see that?

19 A. What page?

20 Q. I'm sorry. Page 70 would be page
21 11, paragraph 70, if you could read that.

22 A. You want me to read it?

23 Q. Please.

24 A. "The Defendant's conduct and
25 actions have had the intended impact upon the

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1 T. DESOUSA

2 Plaintiffs and have caused them to suffer
3 severe emotional distress."

4 Q. When you state "suffer severe
5 emotional distress," are you being treated by
6 a psychiatrist as a result?

7 A. Yes, I am.

8 Q. Who is that psychiatrist?

9 A. Ronald Cohen.

10 Q. Where is he located?

11 A. Rockville Centre and Great Neck.

12 Q. I know I asked you before about
13 the medication, but is this doctor treating
14 you with any medication?

15 A. No.

16 Q. Is he a psychiatrist or
17 psychologist?

18 A. I believe a psychologist.

19 Q. When did you start seeing Ronald
20 Cohen?

21 A. Last year. I am not sure exactly
22 what month.

23 Q. After the lawsuit started?

24 A. After the lawsuit started.

25 MR. BARBARA: Let's mark the

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1 T. DESOUSA

2 video next.

3 (Defendant's Exhibit K, Video,
4 was marked for identification.)

5 (Playing video.)

6 Q. Mr. Desousa, in this video is
7 that your house?

8 A. Yup.

9 Q. And you see that car moving in
10 front of the truck, burgundy --

11 A. I don't know.

12 Q. Right here. This car is backing
13 up. Do you want us to show it to you again?

14 A. Yes.

15 (Playing video.)

16 Q. A couple of questions. This is
17 your house; do you recognize that big truck?

18 A. I do.

19 Q. Whose truck is that?

20 A. Looks like Calvagno's truck.

21 Q. It looks like it has a flatbed on
22 it?

23 A. Yes.

24 Q. Is that your black Jaguar truck?

25 A. Yes.

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1 T. DESOUSA

2 Q. And this four-door vehicle here
3 looks like a burgundy truck. It that yours?

4 A. Yup.

5 Q. Do you recall, is this the
6 incident that I had asked you --

7 A. Yes.

8 Q. -- where you parked on each side?

9 A. Yup.

10 Q. Do you see also how you had --
11 you went forward and then backed up closer to
12 the truck? Do you want --

13 A. I just needed a place to put the
14 car.

15 Q. But you agree that on both sides
16 that's you parking on both sides of the truck?

17 A. Yes, I do.

18 MR. BARBARA: Let's go to the
19 next one.

20 (Playing video.)

21 Q. Do you see this person,
22 Mr. Desousa, getting out of the burgundy
23 vehicle? You remember this particular day,
24 right?

25 A. Yes.

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1 T. DESOUSA

2 Q. So that was you in the car --

3 A. More than likely.

4 Q. Do you see someone, obviously
5 identified as you, get out of the vehicle,
6 right?

7 A. Right.

8 (Playing video.)

9 Q. So you had gotten back in the
10 vehicle and backed it up more, correct?

11 A. I don't remember.

12 Q. I am asking you what you saw in
13 the video --

14 A. I don't know the circumstances of
15 how you're playing this video. I would think
16 that if we put it together on one video it
17 would make more sense --

18 (Speaking simultaneously.)

19 Q. But you saw that you got out of
20 the vehicle, you got back in and moved your
21 car back; that you saw?

22 A. I don't know because the video is
23 not consequential (sic).

24 (Playing video.)

25 Q. Take a look --

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1 T. DESOUSA

2 A. My answer is I don't know.

3 Q. Well, take a look. You got out
4 of the car. Do see the car moving back? That
5 you see. You saw the car move --

6 A. I don't even see the car moving
7 back.

8 (Playing video.)

9 Q. By the way, do you know who that
10 woman --

11 A. His mother.

12 MR. BARBARA: Go to the next
13 one.

14 (Playing video.)

15 Q. That's you in the black Jaguar,
16 correct?

17 A. I would think so. I don't know
18 the date of this vehicle. What's the date?

19 Q. May 22, 2021.

20 A. Okay.

21 MR. BARBARA: Go to the next
22 one.

23 (Playing video.)

24 THE WITNESS: It seems like
25 it's going on for 20 minutes.

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1 T. DESOUSA

2 Q. Do you remember, sir, when I --

3 A. Yes, I do.

4 Q. -- if you ever said to the father

5 that I bought that car to break your son's

6 fucking balls and you said no, correct?

7 A. Yes, I remember.

8 Q. So you remember saying that?

9 A. Yes, I did.

10 (Playing video.)

11 MR. CUOMO: Can I stop you for

12 a moment. For clarification, that's

13 the mother obviously?

14 MR. BARBARA: That's the

15 mother.

16 Q. Is that the father?

17 A. Yes.

18 (Speaking simultaneously.)

19 THE WITNESS: John, I want to

20 see you for a second.

21 MR. CUOMO: Okay.

22 (A recess was taken.)

23 MR. BARBARA: Just let the

24 record reflect that Plaintiff and

25 counsel are back in the room.

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1 T. DESOUSA

2 Go to the next one.

3 (Playing video.)

4 THE WITNESS: That is not the
5 beginning of that video. John,
6 that's not the beginning of that
7 video. John, I object to this video
8 because that's not -- can you stop
9 it.

10 MR. BARBARA: There is no
11 question.

12 THE WITNESS: Oh, yes, it is.
13 You can't show me a video that was
14 probably --

15 MR. CUOMO: The only question
16 I have is I want to identify who was
17 in it.

18 MR. BARBARA: Pause it.

19 MR. CUOMO: Do we know who
20 that is?

21 Q. Who was that in the car?

22 A. That's Calvagno talking to me.

23 MR. BARBARA: Play the video.

24 (Playing video.)

25 THE WITNESS: Where -- is that

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1 T. DESOUSA

2 the beginning of the video?

3 (Speaking simultaneously.)

4 THE WITNESS: Where did you

5 get this video from? There is a

6 second part of it.

7 MR. BARBARA: Go to the next

8 one.

9 (Playing video.)

10 MR. BARBARA: Pause that.

11 Q. Whose car was that?

12 A. I have no idea.

13 Q. That wasn't a black Jaguar truck?

14 A. I have no idea.

15 Q. By the way, you don't see in your

16 driveway the black Jaguar truck, right?

17 A. What is the date of the video?

18 Q. May 15th.

19 A. What year?

20 Q. 2018 --

21 A. I had no car at that point.

22 Q. You had no --

23 A. I had no Jaguar at that point.

24 MS. HAMID: It's May 5, 2021,

25 but here --

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1 T. DESOUSA

2 Q. Did you have the car on May 5,
3 2021?

4 A. What is the timestamp?

5 MS. HAMID: May 5, 2021.

6 A. What is the timestamp --

7 MS. HAMID: Army time 18:20.

8 A. No. What is the timestamp in the
9 left-hand bottom corner?

10 Q. That's the video. That's the
11 amount of time --

12 (Speaking simultaneously.)

13 MR. BARBARA: That's her
14 identification.

15 THE WITNESS: I don't know. I
16 did not own no car at that point.

17 Q. But did you in May of 2021?

18 A. Where did you get that date from?

19 MR. CUOMO: We need to clear
20 this up. This here is the file name
21 that you --

22 MR. BARBARA: Correct.

23 MR. CUOMO: This here is the
24 date which is May 5, 2021, and the
25 time 18:20 or 6:20 in the afternoon.

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1 T. DESOUSA

2 THE WITNESS: John, I would
3 want a judge's ruling on that because
4 I don't think --

5 (Speaking simultaneously.)

6 MR. CUOMO: I understand you
7 want to ask a question, but I am
8 trying to clarify it for him. Do me
9 a favor and go back to the file list
10 so we can see that.

11 MR. BARBARA: Just for the
12 record, we provided this to you. You
13 have them.

14 MR. CUOMO: I understand that.
15 I am trying to clear it up for him so
16 he is aware.

17 What you see over here, Tom,
18 is the file name that can be changed.
19 You can change that right now. She
20 could right click this and write the
21 name whatever she wants. So that is
22 not indicative of the actual date of
23 the file. That is a local file name.

24 THE WITNESS: Right.

25 MR. CUOMO: The actual date on

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1 T. DESOUSA

2 the file is the file date stamped on
3 the front of it. So this can be
4 anything. When she typed it in she
5 obviously made a mistake, if it was
6 her or anyone else who did it.

7 That name, that date is not
8 indicative of --

9 THE WITNESS: Okay.

10 MR. BARBARA: Let's go back.

11 (Playing video.)

12 Q. In May of 2021, Mr. Desousa, did
13 you own of black Jaguar truck?

14 A. Yes, I did.

15 MR. BARBARA: Play the video.

16 (Playing video.)

17 Q. Is that your black Jaguar truck?

18 A. If that video is showing a
19 legitimate date in 2021 it would be mine.

20 Q. Am I correct that the black truck
21 in that video was speeding up the block; we
22 can agree?

23 A. I had trouble with the car and
24 that's the reason something was going on with
25 the transmission. That's the reason. If I

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1 T. DESOUSA

2 was going fast that's the reason I was. Plus,
3 that block ends about 200 feet before my
4 house.

5 Q. Just so I am clear, the problem
6 you were having with the truck is the
7 accelerator would accelerate by itself?

8 A. That was part of it, but
9 something to do with the tranny (sic) or
10 something like that.

11 MR. BARBARA: Play the video.

12 (Playing video.)

13 Q. Mr. Desousa, is that you?

14 A. I have no idea.

15 Q. Does anyone else in your house
16 walk with a cane? Does your wife walk with a
17 cane?

18 A. If it was me --

19 Q. I am asking if that's you?

20 A. I don't know if it was me. It is
21 too far away.

22 Q. Did you walk with a cane
23 occasionally you said after your surgery?

24 A. After my surgery.

25 MR. BARBARA: Play the other

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1 T. DESOUSA

2 one.

3 (Playing video.)

4 Q. Is that you again walking with a
5 cane?

6 A. I think it's me. Yeah. What
7 direction am I going?

8 Q. I don't know what direction;
9 east, west, north or south --

10 (Speaking simultaneously.)

11 A. I am going away from Calvagno's
12 house.

13 MR. CUOMO: Can we establish
14 what direction we are looking at.

15 THE WITNESS: I am going in a
16 south direction. Calvagno's house is
17 north of me.

18 (Playing video.)

19 MR. CUOMO: You asked
20 questions about individual videos.

21 MR. BARBARA: I think the date
22 would be sufficient.

23 MR. CUOMO: There are a number
24 of them on that particular date.

25 (Speaking simultaneously.)

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1 T. DESOUSA

2 MR. BARBARA: Let's start with
3 the one we looked at first.

4 MS. HAMID: May 22, 2021 at
5 15:38. May 22, 2021 at 12:08. May
6 22, 2021 at 9:15. May 22, 2021 at
7 9:11. May 22, 2021 at 9:05. May 22,
8 2021 at 15:41. May 22, 2021 at
9 15:43.

10 May 20, 2021 at 6:40. May 20,
11 2021 at 6:42. May 5, 2021 at 18:20
12 and then we have July 29, 2021 at
13 10:09. July 29, 2021 at ten o'clock.

14 MR. CUOMO: Do you have one
15 there on May 20, 2021 at 6:41?

16 MS. HAMID: Yes, 6:41.

17 MR. CUOMO: That was also
18 played.

19 MS. HAMID: May 20, 2021 at
20 6:41.

21 MR. BARBARA: Off the record.

22 (A discussion was held off the
23 record.)

24 MR. BARBARA: Please mark this
25 Defendant's Exhibit L.

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1 T. DESOUSA

2 (Defendant's Exhibit L,
3 Photographs, was marked for
4 identification.)

5 Q. I am going to show you a group of
6 photographs, Mr. Desousa, that have been
7 marked as Defendant's L. They were produced
8 by you in this litigation.

9 A. Okay.

10 Q. Take a look at them and see if
11 you recognize them.

12 A. All of them?

13 Q. I marked them all.

14 MR. CUOMO: They are
15 collectively marked as one exhibit.

16 THE WITNESS: You want me to
17 go through each one of them?

18 MR. BARBARA: I just gave you
19 an approximate number.

20 (Speaking simultaneously.)

21 THE WITNESS: Why don't you
22 just get to the questions.

23 MR. BARBARA: I need you to
24 identify them first.

25 THE WITNESS: If you want to

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1 T. DESOUSA

2 make this painstakingly slow, that is
3 fine with me. This one doesn't have
4 anything to do with the case.

5 MR. BARBARA: I don't know
6 what it is. You provided it.

7 THE WITNESS: It was a
8 mistake.

9 MR. CUOMO: Off the record.

10 (A discussion was held off the
11 record.)

12 Q. Just to get this one out of the
13 way, Mr. Desousa, can you identify that
14 picture?

15 A. It does not belong -- it's a
16 picture of a dog in our backyard.

17 Q. It's not your dog?

18 A. Well, it's essentially part my
19 dog. It stays in the office -- comes in our
20 office.

21 Q. When you say your office, what
22 office are you referring to?

23 A. We have an office in Seaford
24 where I work.

25 Q. A business office?

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1 T. DESOUSA

2 A. Yes.

3 Q. I noticed, Mr. Desousa, that none
4 of these photos that you provided have dates
5 or --

6 A. There should have been dates.

7 Q. Just let me finish. They don't
8 have dates or times.

9 Were these pictures all taken
10 together or were they taken around the same
11 time? Can you give us an idea.

12 A. The files we produced for you
13 should've had the date the picture was taken.
14 I don't think the time is going to be on it,
15 but the date that it was taken should be on
16 it.

17 Q. We will go through some of these.
18 I will try to do them collectively so we can
19 move along.

20 Take a look at these three. I
21 think they're similar in terms of the
22 category.

23 A. Okay.

24 Q. You took those photos?

25 A. Yes.

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1 T. DESOUSA

2 Q. Where did you take those? In
3 other words, where were you standing when you
4 took the photographs?

5 A. On a boat.

6 Q. Whose boat?

7 A. My grandson's.

8 Q. What was the purpose, if I may
9 ask? In other words, what were you trying to
10 depict in these photos?

11 A. Just find out the amount of slips
12 that Calvagno rents.

13 Q. For example, this photo is
14 portraying three boats --

15 A. Right.

16 Q. -- that are there?

17 A. Right.

18 MR. CUOMO: What are we
19 looking at here?

20 THE WITNESS: We are looking
21 at where he docks his boat.

22 Q. Is that the side of the house?

23 A. Side.

24 (Speaking simultaneously.)

25 THE WITNESS: The side of his

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1 T. DESOUSA

2 house.

3 MR. CUOMO: Where would Grand
4 Central Avenue be?

5 THE WITNESS: Going that way.

6 Q. This photo, obviously this house
7 here, is the back of Calvagno's house?

8 A. That's right.

9 Q. And this is the side that you
10 referred to?

11 A. That's right.

12 Q. And your house would be on the
13 other side of the front of this house?

14 A. That's right.

15 Q. I will do these collectively
16 also. These three, can you tell me what those
17 photos depict?

18 A. These should have been with that
19 -- with the pictures of his car. The
20 neighbor's car parked in his driveway.

21 Q. So a neighbor of Mr. Calvagno's
22 was utilizing his driveway?

23 A. Right.

24 Q. You're not looking to depict
25 anything from these photos?

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1 T. DESOUSA

2 A. I don't think so.

3 Q. Take a look at these collectively
4 if you could, Mr. Desousa.

5 A. I have to interrupt because he's
6 taking this out of context. There was an
7 explanation --

8 Q. Mr. Desousa, just for the record,
9 there is no question. We can't have it on the
10 record. I will ask you. These are photos I
11 am showing you. I am asking you to --

12 A. I don't know.

13 MR. BARBARA: Off the record.

14 (A discussion was held off the
15 record.)

16 MR. BARBARA: For the record,
17 Plaintiff and counsel are back in the
18 room.

19 Q. I had put as part of the last
20 exhibit we marked photos and I collectively
21 put another batch of photos.

22 Mr. Desousa, take a look at
23 those, please.

24 A. Okay. I see them.

25 Q. That particular set of photos I

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1 T. DESOUSA

2 gave you depict what?

3 A. Decibel readings. I want to
4 qualify all of the pictures. These pictures
5 came with an explanation in a computer format
6 and it came with a date, which you asked me
7 none of these were dated.

8 They are dated and they're in
9 computer format next to the picture, to the
10 photo, the JPEG or whatever type of picture it
11 is. Next to it gives an explanation of what
12 the picture is and the date it was taken.

13 Q. Unfortunately, I need your
14 testimony. That wouldn't suffice, but we
15 agree that none of those date stamps are on
16 the actual photos, correct?

17 A. They are on the computer.

18 Q. I heard you very clearly, but I
19 am trying to establish that we agree that it
20 is not on the actual photo; it's not on the
21 photograph?

22 A. It's not on the photos because
23 it's on the computer file.

24 Q. What do those depict because
25 that's what the question was?

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.

THOMAS DESOUSA - May 3, 2023

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1 T. DESOUSA

2 A. Decibel readings.

3 Q. When you say decibel readings,
4 are you looking at something that is giving a
5 decibel reading in that photo?

6 A. That's a decibel reading.

7 Q. No. I see the reading, but what
8 is this in the photo, this yellow thing --

9 A. That's a decibel recorder.

10 Q. Thank you. So you have a decibel
11 recorder that is giving you what you allege is
12 a decibel reading, correct?

13 A. That's right.

14 Q. And your testimony is these
15 decibel readings on the decibel recorder are a
16 decibel reading of what?

17 A. More than likely a videotape on
18 the date those pictures were taken.

19 Q. What are these alleged readings
20 from? Something is giving you a reading,
21 right?

22 A. Where did I take the picture?

23 Q. No. What --

24 (Speaking simultaneously.)

25 A. From Calvagno's exhaust.

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
THOMAS DESOUSA - May 3, 2023

84

1 T. DESOUSA

2 Q. Do you have any photos with the
3 exhaust and you holding up the decibel
4 recorder to the actual exhaust?

5 A. That's impossible.

6 Q. I don't know that that's
7 impossible. Do you --

8 A. It's impossible.

9 Q. It's impossible for you to put
10 the device up to the exhaust?

11 A. Yes.

12 Q. The answer is you wouldn't have a
13 photo of --

14 A. It's impossible for me to do.

15 Q. Therefore, you wouldn't have a
16 photo?

17 A. It's impossible for me to put a
18 decibel recorder next to his muffler. He
19 would need to give me permission to go on his
20 property and do that.

21 Q. What proof do you have that these
22 readings are as a result of the exhaust on
23 Mr. Calvagno's car?

24 A. The videotape that belongs with
25 that picture.

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
THOMAS DESOUSA - May 3, 2023

85

1 T. DESOUSA

2 Q. Where are you in that videotape
3 that you're referring to?

4 A. More than likely in my home at
5 the time. In the last room in my house or the
6 side of my house.

7 Q. And you're on the other side of
8 the street, correct?

9 A. Right.

10 Q. What proof, again, would you have
11 that when you're on the other side of the
12 street and you're taking a picture of a
13 decibel reading that that is a result of
14 Mr. Calvagno's exhaust from across the street?

15 A. Because I have the videotape of
16 that morning.

17 Q. So it could not be from any other
18 sound?

19 A. How is it? It's a residential
20 neighborhood.

21 Q. I am --

22 A. Absolutely.

23 Q. By the way, every time you use
24 this decibel reading do you calibrate this
25 device in any way?

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
THOMAS DESOUSA - May 3, 2023

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1 T. DESOUSA

2 A. There is no calibration.

3 Q. How do you know that it works
4 properly?

5 A. I know it works properly.

6 Q. Do you have any education or
7 training in decibel reading?

8 A. No, I do not. There are decibel
9 recordings before Mr. Calvagno starts his car
10 and you can see what those decibels are versus
11 after he starts his car.

12 Q. Have you ever put this decibel
13 reader up to the back of your Jaguar?

14 A. No.

15 Q. Let's go to the next one. Take a
16 look at that photograph.

17 A. Okay.

18 Q. I just want you to finish,
19 Mr. Desousa.

20 A. Okay.

21 Q. Can we agree that that batch is
22 kind of the same category of photos?

23 A. What?

24 Q. The same category of photos,
25 looking at his front yard --

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 A. Yeah.

3 Q. And you took these photos of
4 Calvagno's front yard for what purpose?

5 A. To depict the mess he left on his
6 property.

7 Q. For example, these three here you
8 see Mr. Calvagno's car and also like a piece
9 of construction equipment?

10 MR. CUOMO: Do we have some
11 way to identify what photographs you
12 are asking questions about --

13 MR. BARBARA: We can go
14 through everyone --

15 MR. CUOMO: For the purposes
16 of the questions you're currently
17 asking him, are we going to have
18 those marked so we can identify which
19 photographs he's looking at?

20 MR. BARBARA: They're all
21 marked.

22 (Speaking simultaneously.)

23 MR. BARBARA: That's why I
24 asked the witness if this category
25 depicts his front yard and he --

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 MR. CUOMO: I understand that,
3 but there -- this one there are three
4 pieces --

5 MR. BARBARA: I don't think
6 it's necessary --

7 A. All showing a mess and that he
8 kept his equipment in his yard, parked his car
9 on the grass.

10 Q. Let me ask you this, also, the
11 fact that he was parked on -- first of all,
12 when you say parked on his grass, there is
13 mostly dirt there, right?

14 A. That's grass. That's where the
15 grass belongs.

16 Q. But there is no grass there at
17 that time, right?

18 A. There is grass behind the car.

19 Q. The fact that he is parked -- we
20 will call it off the driveway -- you took
21 issue with that, right, or you take issue with
22 that?

23 A. Of course. It's against the
24 Amityville zoning.

25 Q. Did you call the police when he

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
THOMAS DESOUSA - May 3, 2023

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1 T. DESOUSA

2 was parked --

3 A. No, I did not.

4 Q. So you never called the police
5 when --

6 A. No.

7 Q. How often was he parked or were
8 any of the cars parked off the driveway in
9 that spot?

10 A. Many times.

11 Q. And you never called the police?

12 A. I never called them.

13 Q. By the way, the machine, is that
14 the same machine in all the photos, that
15 particular machine?

16 A. More than likely it is. I am not
17 sure.

18 Q. Have you ever seen that machine
19 being used?

20 A. Yes.

21 Q. What were they using the machine
22 to do?

23 A. Working on his yard I assume.

24 Q. Is that now the bigger driveway,
25 that bigger area --

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
THOMAS DESOUSA - May 3, 2023

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1 T. DESOUSA

2 A. No.

3 (Speaking simultaneously.)

4 Q. Didn't you testify earlier that
5 they made the driveway bigger?

6 A. Yeah.

7 Q. And it didn't go in that
8 direction?

9 A. It did go in that direction, but
10 that's where the machine is.

11 Q. Right. Now that's --

12 A. Where the driveway ended up
13 months later.

14 Q. By the way, now that the driveway
15 is finished there is no longer machinery
16 there?

17 A. No machines right now. I don't
18 think he has machinery now. That's my answer.
19 I don't think he has machinery there now.

20 Q. You slept at home last night,
21 right?

22 A. I was home last night.

23 Q. When you got up this morning did
24 you see machinery there?

25 A. I did not look for machines.

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 That's the reason I don't think there is any.

3 Q. Let's take a look at those two
4 photos. What do those photos depict, sir?

5 A. Garbage being put out in the
6 street without covering his garbage.

7 Q. So no lid on the garbage?

8 A. Never.

9 Q. And these two photos, sir, is
10 that the same patch of dirt that I was
11 referring to where the cars were parked?

12 A. Assume, yeah.

13 Q. And that's now blacktop, correct?
14 That is now the driveway?

15 A. Consequent (sic) -- subsequent to
16 this -- subsequent to this picture?

17 Q. Correct.

18 MR. CUOMO: This entire area
19 was blacktop?

20 A. I think so, yeah.

21 Q. Take a look at this one.

22 A. Okay.

23 Q. That looks sort of like a dump
24 truck?

25 A. Yes.

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 Q. And you took a picture for what
3 purpose?

4 A. To show construction is ongoing
5 and he keeps dumping fill, dumping whatever.

6 Q. Let me ask you a question, other
7 than having construction how else would he
8 have expanded and fixed the driveway?

9 A. He -- he did not need fill to fix
10 his driveway.

11 Q. Did he need construction
12 equipment to fix the driveway?

13 A. He hired somebody.

14 Q. Did they have any type of
15 equipment that would fix the driveway?

16 A. This was not the driveway
17 contractor. This is fill being brought in
18 from -- I don't know what the source was.

19 Q. And you don't know what the fill
20 was for, correct?

21 A. I have no idea.

22 Q. Take a look at these.

23 A. Pilings it looks like.

24 Q. Mr. Desousa, you see what looks
25 like almost like -- I don't want to call it

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 lumber, but you see almost batches of logs?

3 A. Pilings.

4 Q. Do you know what those pilings
5 were used for?

6 A. Used for bulkhead.

7 Q. Is it your understanding that
8 they did repairs or construction to the
9 bulkhead?

10 A. Yes.

11 Q. Do you know when they did that?

12 A. Approximately two years ago.

13 Q. And we can agree that it would
14 have been necessary for them to repair the
15 bulkhead, that --

16 A. They were there for months.

17 Q. And that job is complete as far
18 as you know?

19 A. Yup.

20 Q. By the way, when was the driveway
21 complete?

22 A. I think last year.

23 Q. Do you know how long that job
24 took?

25 A. That was relatively simple. Only

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 two or three weeks.

3 Q. And the bulkhead job was before
4 or after the driveway?

5 A. Before I think.

6 Q. Do you know how long the bulkhead
7 job took?

8 A. The bulkhead job took months and
9 two different times. Two different times for
10 the bulkhead job.

11 Q. So these photos, if you take a
12 look at -- they kind of depict equipment?

13 A. Yup.

14 Q. Do you know what job because now
15 I see instead of one machine, I see two
16 particular machines in these photos.

17 Do you know what job this was
18 for?

19 A. I have no idea what he was doing,
20 but it was Calvagno's property.

21 Q. But do you know were either these
22 photos and the machinery in the photos, do you
23 know if these machines were utilized for
24 either the bulkhead or the driveway?

25 A. I don't think they were utilized

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THOMAS DESOUSA - May 3, 2023

95

1 T. DESOUSA

2 for the bulkhead, but I don't know.

3 Q. How about this photograph?

4 A. That's a picture of his car
5 without a front plate.

6 Q. And the purpose of taking that
7 was for what purpose?

8 A. Because his car is required to
9 have a front plate in New York State.

10 Q. Do you know if Mr. Calvagno
11 smokes? Does he smoke; do you know?

12 A. I have no idea.

13 Q. You've never seen him throw a
14 cigarette on the street or anything like that?

15 A. I have no idea whether he smokes.

16 Q. That is what I am asking. Have
17 you ever seen him flick his cigarette on the
18 floor; you've never seen that?

19 A. I have no idea whether he smokes.

20 Q. If you did see that would you
21 call the police?

22 A. No, I would probably clean it up.

23 Q. By the way, Mr. Desousa, are you
24 still recording, making videos now of the
25 Calvagno's property?

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 A. I haven't recorded Calvagno in
3 approximately four months. Nothing has
4 changed.

5 Q. Take a look at those,
6 Mr. Desousa. They are similar in nature.

7 A. Okay.

8 Q. What do those pictures depict?

9 A. Him parking in front of my house.
10 That's why they were taken.

11 Q. What do these depict?

12 A. Him parking in front of my house
13 with spots in front of his house that are
14 open.

15 Q. Right. Looking at this one in
16 particular, you see Mr. Calvagno's Dodge
17 Charger and then you see a pickup truck,
18 correct?

19 A. Yeah.

20 Q. Whose pickup truck is that?

21 A. His.

22 Q. Can I have that one back. By the
23 way, they didn't drive up on your grass at all
24 or the curb, correct? They were parked on the
25 street, not on the curb?

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1 T. DESOUSA

2 A. On the street.

3 Q. And you take issue with that
4 because your position is they could have
5 parked it in front of their house?

6 A. Why wouldn't they?

7 Q. For example, this particular one
8 they do have a Cadillac. Is that a Cadillac
9 parked in front of their home?

10 A. Whatever. No, that Cadillac is
11 parked in front of my house. No, it's his
12 house. I'm sorry. Okay.

13 He has a spot in front of that
14 and beyond here he has numerous spots. He has
15 probably another 100 foot (sic), 150 foot of
16 property.

17 Q. Are you aware, is it illegal to
18 park in front of your neighbor's home?

19 A. No.

20 Q. Did you call the police when they
21 were parked in front of your house?

22 A. No.

23 Q. Take a look at this one, Mr.
24 Desousa.

25 A. Okay.

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 Q. What is that a picture of?

3 A. A picture of the dump truck and a
4 container is his driveway.

5 Q. That's a dump truck?

6 A. Whatever. Flatbed. I don't
7 know.

8 Q. Do you know what Mr. Calvagno
9 does for employment, what he does for work?

10 A. (Unintelligible.)

11 Q. Do you know if that's his truck
12 that he uses for work?

13 A. I have no idea.

14 Q. But is that the same truck that
15 you had parked in front and behind --

16 A. I have no idea.

17 Q. Have you ever seen him driving
18 this type of truck more than once?

19 A. Yes.

20 Q. This one again, Mr. Desousa, this
21 is the boat, correct?

22 A. That's correct.

23 Q. And that picture, you took that
24 picture to depict what?

25 A. That he has four boats docked on

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 T. DESOUSA

2 the side of his house. I am not certain how
3 many boats in front of his house on the other
4 side. He has more bulkhead.

5 Q. And you take issue with the fact
6 that he has more than one boat parked there?

7 A. I take issue with the fact that
8 he rents slips.

9 Q. Except for the fact, I think you
10 had testified, that you have never seen a
11 rental agreement, correct?

12 A. That's correct.

13 Q. How about this one, Mr. Desousa?

14 A. I think -- I'm sorry.

15 Q. What is that one, sir?

16 A. A boat in the dock in the back of
17 his house.

18 Q. I see the back of a boat. Did
19 you take this particular one for a reason?

20 A. It is very possible it's on the
21 same day I took the four boats on the side. I
22 am not sure.

23 Q. By the way, I think you had
24 mentioned you have a boat as well, correct?

25 A. No.

100

1 T. DESOUSA

2 Q. You don't have a boat?

3 A. No.

4 Q. But you have the canal behind
5 you, right, the water?

6 A. I am on the water.

7 Q. Right, but no boat?

8 A. I don't have a boat at my home.

9 Q. But you do have a boat?

10 A. I have a boat in my business.

11 Q. When you say in your business --

12 A. We have a boat because that's our
13 business.

14 Q. But you don't have a boat that's
15 in your business name that is behind your home
16 just to clarify?

17 A. You cannot keep a boat without a
18 lift.

19 Q. So you don't have a lift?

20 A. I have -- I don't have one.

21 Q. Again, this one I think you --

22 A. Okay.

23 Q. -- and those are pictures of?

24 A. Garbage strewn about without any
25 covers.

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1 T. DESOUSA

2 Q. No lids?

3 A. Just the fact that the garbage
4 strewn about without being covered.

5 Want to know what it is?

6 Q. Yes.

7 A. That's inside my house with a
8 camera and meter for the decibels and the
9 amount the window is open so I can keep the
10 camera in it.

11 Q. What time period was this --

12 A. Morning.

13 Q. Date wise?

14 A. I told you there's a date
15 attached.

16 Q. But you don't know from looking
17 at this the time period?

18 A. No.

19 Q. During this time period when the
20 photo was taken how often would you do this in
21 the morning? Would you open the window and do
22 a decibel reading and video camera?

23 A. It's all according to how long he
24 left the car running, how loud the car was.
25 Sometimes the atmosphere affects the noise.

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1 T. DESOUSA

2 MR. BARBARA: Off the record.

3 (A discussion was held off the
4 record.)

5 MR. BARBARA: I think I can
6 close today's deposition.

7 (Time noted: 3:41 p.m.)

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A C K N O W L E D G M E N T

STATE OF NEW YORK)
 :SS
COUNTY OF)

I, THOMAS DESOUSA, hereby certify
that I have read the transcript of my testimony
taken under oath in my deposition of
May 3, 2023; that the transcript is a true,
complete and correct record of my testimony,
and that the answers on the record as given by
me are true and correct.

THOMAS DESOUSA

Signed and subscribed to before
me, this day
of , 2023.

Notary Public, State of New York

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39 Name of Doctor

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C E R T I F I C A T E

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

I, ELIZABETH SCHEIBE, a Notary
Public within and for the State of
New York, do hereby certify:

That THOMAS DESOUSA, the
witness whose deposition is
hereinbefore set forth, was duly
sworn by me and that such deposition
is a true record of the testimony
given by such witness.

I further certify that I am not
related to any of the parties to this
action by blood or marriage; and that I am
in no way interested in the outcome of
this matter.

IN WITNESS WHEREOF, I have
hereunto set my hand this 3rd day of
May, 2023.

Elizabeth Scheibe

ELIZABETH SCHEIBE



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*** ERRATA SHEET ***

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NAME OF CASE: DIANE C. DESOUSA AND THOMAS E.

DESOUSA v. RICHARD A. CALVAGNO

II AND PATRICK J. KARCHER

DATE OF DEPOSITION: 5/3/2023

NAME OF WITNESS: THOMAS DESOUSA

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THOMAS DESOUSA

SUBSCRIBED AND SWORN BEFORE ME THIS ____ DAY OF
_____, 2023._____
(NOTARY PUBLIC) MY COMMISSION EXPIRES:

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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